

25STCV19698 25STCV19698

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Case Number: 25STCV19698 Hearing Date: June 25, 2026 Dept: 224

Stiller v. Chicago Title Insurance Co.

TENTATIVE RULING

The Court DENIES Plaintiffs' Motion for Relief from Discovery Stay pursuant to Code of Civil Procedure section 425.16(g).

Introduction

On July 3, 2025, Plaintiffs filed the Complaint in this action.

On September 15, 2025, Defendants filed a Special Motion to Strike pursuant to Code of Civil Procedure section 425.16, which automatically stayed discovery.

On April 20, 2026, Plaintiffs filed the instant Motion for Relief from Discovery Stay Pursuant to Code of Civil Procedure Section 425.16(g).

On May 8, 2026, Defendants filed an opposition.

On June 17, 2026, Plaintiffs filed a reply.

Legal Standard

Code Civ. Proc. § 425.16(g) provides, "All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision."

In order to establish "good cause" within the meaning of Code Civ. Proc. § 425.16(g), the plaintiff must show that "a defendant or a witness possesses evidence needed by the plaintiff to establish its probability of prevailing on a claim." (1-800 Contacts, Inc. v. Steinberg (2003) 107 Cal.App.4th 568, 572). Whether good cause has been shown is within the discretion of the Court. (See Lafayette Morehouse, Inc. v. Chronicle Publ'g Co. (1995) 37 Cal.App.4th 855, 868.)

"[T]he fact evidence necessary to establish the plaintiff's prima facie case is in the hands of the defendant or a third party goes a long way toward showing good cause for discovery. But it is not the only factor. The trial court should consider whether the information the plaintiff seeks to obtain through formal discovery proceedings is readily available from other sources or can be obtained through informal discovery. The court should also consider the plaintiff's need for discovery in the context of the issues raised in the SLAPP motion." (The Garment Workers Ctr. v. Superior Court (2004) 117 Cal.App.4th 1156, 1162.)

Timeliness

Defendants contend the Motion should be denied as untimely because Plaintiffs waited until April 18, 2026 – more than seven months after the Special Motion to Strike –was filed to seek relief from the stay. Section 425.16(g) imposes no fixed deadline for a motion to lift the discovery stay; it requires only a noticed motion and a showing of good cause. (Code Civ. Proc. § 425.16(g).)

The Court declines to deny the motion as untimely.

Discussion

Plaintiffs move to lift the stay to take four depositions: the PMK for Chicago Title, the PMK for FNLG, Karen Ragland, and Amy Peitz (an Assistant Vice President of Chicago Title who resides in Nebraska). Plaintiffs assert the evidence needed to oppose the Anti-SLAPP Motion is within Defendants' possession and concerns the initiation and continued prosecution of the Underlying Action and the relationship between Chicago Title and FNLG.

Here, Plaintiffs have not shown good cause for the discovery. Namely, Plaintiffs do not connect the requested discovery to the issues raised in the Anti-SLAPP Motion or show that the depositions are necessary to establish their probability of prevailing.

The Court must assess Plaintiffs' need for discovery "in the context of the issues raised in the SLAPP motion." (Garment Workers, supra, 117 Cal.App.4th at 1162.)

Plaintiffs identify only general subject areas: Chicago Title's initiation of the Underlying Action, its decision to continue prosecution, and its relationship with FNLG. They do not identify the specific evidence they expect each deponent to provide, state the PMK examination topics they intend to notice, or explain how that testimony would establish a probability of prevailing on either cause of action. General categories of desired information do not establish that any witness possesses evidence needed to make a prima facie showing.

Further, the probable cause element of Plaintiffs' claim amplifies the disconnect. Probable cause is assessed objectively and is normally decided by the court as a matter of law on the merits of the underlying action. (Sheldon Appel Co. v. Albert & Olier (1989) 47 Cal.3d 863, 878, 881; Roche v. Hyde (2020) 51 Cal.App.5th 757, 793.) Where the facts known to the defendant when it initiated or continued the underlying action are undisputed, the tenability of the claim is a pure question of law for the court. (Sheldon Appel, supra, 47 Cal.3d at p. 881.) Defendants invoke the interim adverse judgment rule, under which a ruling on the merits in the Underlying Action establishes probable cause as a matter of law unless a recognized exception applies. (Parrish v. Latham & Watkins (2017) 3 Cal.5th 767, 782.) Plaintiffs have not shown that the written record fails to resolve probable cause or that any exception to the interim adverse judgment rule is implicated here. On this record, the Court can resolve probable cause without the requested discovery. Deposition testimony probing Defendants' subjective belief in the tenability of the underlying claims is not necessary to that inquiry. To the extent Plaintiffs seek discovery on the element of malice, they identify no affirmative facts they expect to develop and seek only to probe Defendants' declarations, which is not a proper basis for relief from the stay.

Nor does Plaintiffs' contention that the relevant evidence lies with Defendants carry the motion. Even accepting that, possession by the defendant "goes a long way" but "is not the only factor." (*Garment Workers*, supra, 117 Cal.App.4th at 1162.) Where, as here, Plaintiffs fail to tie the discovery to the issues raised in the Anti-SLAPP Motion, the location of the evidence does not carry the motion.

Conclusion

The Court DENIES Plaintiffs' Motion for Relief from Discovery Stay pursuant to Code of Civil Procedure section 425.16(g).

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.